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Executive summary
These guidelines provide guidance on the application of Article 37 LED, in particular on the legal standard for appropriate safeguards to be applied by competent authorities pursuant to Article 37(1)(a) and (b) LED and, accordingly, on the relevant factors for the assessment of whether such safeguards exist. These guidelines therefore include an indication as to the EDPB s expectations of Member States, as negotiating parties, when envisaging concluding or amending a legally binding instrument between the concerned Member State(s) and a third country or international organisation pursuant to Article 37(1)(a) LED.
The EDPB notes that Article 35(3) LED applies to transfers carried out under Article 37 LED. Article 37 LED should therefore be applied in light of the principle that the level of data protection applicable in the European Union must not be undermined by the transfer of personal data to another jurisdiction.
The EDPB concludes that Article 37 LED requires an essentially equivalent level of data protection in the recipient third country or international organisation. However, this requirement relates to the specific data transfer or category of transfers at hand. Pursuant to Article 37 LED, essential equivalence to the protection guaranteed under the LED should be ensured for that particular case and not necessarily with regard to the entire existing legislation in the third country or international organisation.
The EDPB has already adopted Recommendations on the adequacy referential under the LED, addressing which data protection principles have to be present to ensure essential equivalence with the EU framework within the scope of the LED. The EDPB considers that the principles and safeguards outlined in these Recommendations apply in substance in the context of Article 37 LED, i.e. with regard to the specific transfer or category of transfers.
A legally binding instrument in the meaning of Article 37(1)(a) LED has to be concluded by the entity empowered to enter into obligations with respect to the safeguards provided in the instrument. The international agreement should thus have the force of law. Such legally binding instrument can be enforced by the Parties and by data subjects whose personal data processing is governed by the agreement. The legally binding instrument should contain all relevant rules to allow overcoming any shortcomings or limitations of the legislation of the third country or international organisation in terms of data protection by setting a framework of appropriate safeguards that afford an essentially equivalent level of data protection.
The EDPB considers that the use of a legally binding instrument regulating personal data transfers between the Parties should, in the absence of an adequacy decision, in principle, take precedence, over an assessment by the controller according to Article 37(1)(b) LED as it provides more legal certainty, transparency, foreseeability, stability, consistency and guarantees on the effective application of data protection safeguards.
In this context, the EDPB recalls its Statement on international agreements including transfers, adopted on 13 April 2021, inviting Member States to assess and, where necessary, review their international agreements that involve international transfers of personal data. The EDPB emphasizes that consideration should be given to the aim of bringing those agreements in line with the LED requirements for data transfers, where this is not yet the case, to ensure that the level of protection of natural persons guaranteed by the LED is not undermined when personal data is transferred outside the Union.
With respect to Article 37(1)(b) LED and in light of the above-mentioned greater guarantees offered by legally binding instruments, competent authorities may rely on such an assessment only when this